



File No.: EXP202313089

RESOLUTION OF RIGHTS PROCEDURE

Considering the complaint registered on August 14, 2023, with this Agency and the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On August 14, 2023, a complaint was received by this Agency submitted by Mr. A.A.A. (hereinafter, the complainant) against the GENERAL COUNCIL OF NOTARIAT (hereinafter, the respondent) for not having duly attended to the right of access to the data of his deceased mother. The complainant, in relation to a conflict regarding the inheritance of his deceased mother, states that he has requested access to "all data and metadata of B.B.B., with ID ***NIF.1, who passed away on 18.10.18, that are recorded in files and registers dependent on the Ministry of Justice, or the General Council of Notariat, or any other public entity responsible" from the respondent up to 5 times, with his requests having been ignored.

The application submitted to the General Subdirectorate of Notariat and Registries dated May 8, 2023, has been provided.

Furthermore, the complainant argues that this Spanish Agency for the Protection of Data and the Ministry of Justice are obliged to forward his requests ex officio to the competent body based on Article 14 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, even if it was not directed to the respondent.

The complainant also requests that a claim for patrimonial liability be considered submitted, that an ex officio sanctioning file be opened for the facts, and that "effective action be taken ex officio without unnecessary requirements or hearing procedures that may delay the investigation."

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The data protection officer of the respondent states that the requests sent through the General Electronic Registration system of REDSARA have not been received since their registration is not connected, through any enabled integration application, to the Interconnection System of C/ Jorge Juan, 6

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Registers (SIR), which is the basic infrastructure that allows the exchange of electronic registration entries between Public Administrations. Thus, they assert that their requests do not appear in the incoming document register of the responding party, being supposedly deposited in the SIR system in the DIR3 folder of the Council, without having been accessed.

Furthermore, it is stated that the claiming party has not utilized the postal and email addresses available to them, preventing the responding party from being aware of the access requests.

The responding party points out, in relation to Article 3 of the LOPDGDD, which establishes that "Persons related to the deceased for family or factual reasons as well as their heirs may address the controller or processor of the data in order to request access to the personal data of the deceased and, where appropriate, its rectification or deletion (...)," that "(...) Note that in this Article 3, only persons related to the deceased are guaranteed the right of access, which must be applied within the framework of Spanish law, and precisely the wording of the Notary Law applicable to access requests, which is the wording prior to the new wording established by Article 34.1 of Law 11/2023, does not allow individuals to access the Unique Computerized Index, as will be seen.

It is for this reason that the literal text of paragraphs 2 and 3 of Article 17 bis prior to the aforementioned reform, which regulates the Unique Computerized Index until its new wordings come into effect, must be brought to attention, and therefore are the ones that must be applied to the access

request made. The text is as follows:

“2. For the purposes of the proper collaboration of the Notary and their corporate organization with public administrations, notaries shall be obliged to maintain computerized indexes and, where appropriate, in paper format of the notarized and intervened documents. The Notary must ensure the utmost accuracy of these indexes, as well as their correspondence with the authorized and intervened public documents, and shall be responsible for any discrepancies that exist between them and these, as well as for non-compliance with their submission deadlines. The content of such indexes shall be determined by regulation, and the General Council of Notaries may delegate the addition of new data, as well as the specification of their technical characteristics for preparation, submission, and preservation. The General Council of Notaries shall form a unique computerized index with the aggregation of the computerized indexes that notaries must submit to the Notarial Colleges. For these purposes, with the periodicity and within the deadlines established by regulation, notaries shall submit the indexes electronically through their corporate network and with the necessary confidentiality guarantees to the Notarial Colleges, which shall submit them, by the same means, to the General Council of Notaries.

3. It shall be the responsibility of the General Council of Notaries to provide statistical information within its competence, as well as to supply any information from the index that is necessary to the public administrations that, in accordance with the Law, may access its content, for which purpose it may create a specialized unit.

In particular, and without prejudice to other forms of collaboration that may be appropriate, the General Council of Notaries shall provide public administrations with...

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tax authorities the information contained in the computerized unique index with tax relevance that they require for the fulfillment of their functions, in accordance with the provisions of Article 94.5 of Law 58/2003, of December 17, General Tax Law, will allow direct telematic access of the tax administrations to the index and will request from the Notary the copy of the public instrument referred to in the information request for subsequent submission when this is made through said Council.”

According to this text, the General Council of Notaries is only authorized to allow access to the Computerized Unique Index for two purposes, namely: 1. to provide statistical information within its competence, and 2. to supply any information from the index that is necessary to the public administrations that, in accordance with the Law, may access its content. Thus, based on this, said Council, within the framework established by notarial regulations and data protection laws, has no legal competence to access or allow the requester access “to all notarial data and metadata of his deceased mother on 24.10.2018” contained in the Computerized Unique Index, and therefore, to obtain such information, the claimant must exercise the right of access to the data before the notaries who issued the public documents or who are in charge of the protocols.”

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the claiming party were satisfied, as the duty to respond was not accredited, in accordance with Article 12.4 of the aforementioned LOPDGDD. Consequently, on November 6, 2023, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint filed. The aforementioned agreement granted the responding party a hearing procedure, so that within ten working days it could present the allegations it deemed appropriate.

The responding party reiterated, in summary, what had already been indicated previously.

“The fact is that, until the receipt of said request, the General Council of Notaries had never been aware of such requests made for the exercise of the right of access of the affected party regulated in Article 15 of Regulation (EU) 2016/679.”

“(…) In this regard, the data protection officer of the responding party has already stated in the referred writing that the requests of the claiming party do not appear in an entry register of documents of the

General Council of Notaries, but were deposited in the General Electronic Register of the AGE to which it is connected to the Interconnection System of Registers, which is the basic infrastructure that allows the exchange of electronic registration entries between Public Administrations.

Well, this General Electronic Register of the AGE is configured through the so-called common Directory DIR3, to which the General Council of Notaries has never had access enabled. For this reason, as will be demonstrated in this writing, when the claiming party exercised said right of access using the General Electronic Register of the AGE, it did not send its requests to the responding party, but to another agency of the AGE, violating the very rules of use of the procedure.

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electronic means that the claimant has chosen to make their requests, knowing (or at least should have known) that their requests would never be received by the responding party, which made it materially impossible to respond to them. (...)"

"(...) As already mentioned, the means used by the claimant to exercise their right has been the use of the aforementioned General Electronic Registry of the AGE (REG-AGE), publicly accessible at the URL Inicio_(redsara.es), configuring said REG-AGE as a registry for the entry and exit of documents that interested parties direct for processing to any body of the General Administration of the State, its public bodies, or dependent or linked entities. However, the necessary condition is established that it must be adhered to the Interconnection System of Registries (SIR), as indicated in the "Terms and Conditions of Use" of said portal (Legal Notice REG (redsara.es)): "Reg.redsara.es is an administrative electronic registry through which Citizens and Companies can submit Writs and Requests to the Public Administrations integrated into the Interconnection System of Registries (SIR)," a condition that is reiterated in the "Frequently Asked Questions" section (Frequently Asked Questions (redsara.es)), that is, that records can only be sent to an organism or entity belonging to any public administration "as long as it is adhered to the Interconnection System of Registries (SIR)," and the truth is that the responding party has never been adhered to said system, so the claimant, by not complying with this administrative requirement, cannot be considered a valid means to send their access requests to the responding party.

It should be noted that said Interconnection System of Registries (SIR) is the basic infrastructure that allows the exchange of electronic registry entries between the bodies or entities belonging to any public administration, entries that are sent by citizens to the General Electronic Registry of REDSARA. But since it has never been adhered to said SIR, they could not be exchanged with the General Council of Notaries. Thus, the truth is that this body has been associated since April 13, 2020, in the current configuration of the DIR3 Directory, to the registration office "000000251 – Central Office for Citizen Attention and General Registry of the Ministry of Justice" of the Ministry of Justice, and this configuration is what has led the claimant to mistakenly interpret that the responding party was the recipient of their electronic records, when this has not been the case."

The responding party states that "As indicated by the AEPD to the claimant, in resolution of June 21, 2023) in the file initiated N/Ref EXP202301325) resolving their request for access directed to the S.G. OF NOTARIES AND REGISTRIES, "data protection regulations provide affected individuals with various mechanisms for resolving issues related to the processing of their personal data. If you have any doubts regarding this or wish to exercise your rights, you can, through the expressly provided contact channels, directly contact the data controller. In the event that the controller has not resolved the issues raised, a friendly solution can be reached by contacting the Data Protection Officer (DPO) that, in their case, has been designated by the controller or the processor, among which

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functions includes supervising compliance with data protection regulations within its scope."

And concludes that "The complainant neither addressed the data controller directly nor their data protection officer."

FOURTH: After examining the document submitted by the responding party, it is forwarded to the complainant, so that, within ten working days, they may formulate any allegations they deem appropriate.

The complainant has provided a copy of the response issued by the responding party dated January 17, 2024, in which "(...) it is communicated that, in accordance with Order JUS/484/2003, of February 19, which regulates the automated files of personal data of the Notary Corps, File 5, letter H, relating to the exercise of the rights of access, rectification, cancellation, and opposition, such rights must be exercised, when appropriate, at the Notary where the personal data was provided.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have appointed a data protection officer, Article 39 of the GDPR assigns to this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, it was forwarded to the responding party for analysis, to respond to this Agency within one month and to prove that they had provided the complainant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on November 6, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the complainant was notified of the admission agreement. After this period, the interested party may consider their complaint upheld."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the controller or processor

to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, opposition, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3).

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of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the data controller provides remote access to the data, with the request being deemed fulfilled (although the data subject may request the information referred to in the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not adversely affect the rights and freedoms of others.

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Conclusion

The rights procedure is initiated as a consequence of the failure to address any of the rights regulated in the data protection regulations. Therefore, in this case, only the facts related to the exercise of these rights will be analyzed and assessed, excluding the rest of the issues raised by the parties.

In this case, taking into account the provisions of the first paragraph of this legal basis, it has been established that the complainant, on May 8, 2023, submitted a written request addressed to the General Subdirectorate of Notaries and Registries requesting the General Council of Notaries the right of access to the personal data of their deceased mother.

Article 3 of the LOPDGDD provides, in relation to the data of deceased persons, that

“1. Persons related to the deceased by family or de facto ties as well as their heirs may contact the data controller or processor in order to request access to the personal data of the deceased and, where appropriate, its rectification or deletion.

As an exception, the persons referred to in the previous paragraph may not access the data of the deceased, nor request its rectification or deletion, when the deceased person expressly prohibited it or when a law so establishes. This prohibition shall not affect the right of the heirs to access the patrimonial data of the deceased.

2. Persons or institutions expressly designated by the deceased for this purpose may also request, in accordance with the instructions received, access to the personal data of the deceased and, where appropriate, its rectification or deletion.

The requirements and conditions for verifying the validity and effectiveness of these mandates and instructions, and, where appropriate, their registration, shall be established by royal decree.

3. In the event of the death of minors, these powers may also be exercised by their legal representatives or, within the scope of their competencies, by the Public Prosecutor's Office, which may act ex officio or at the request of any natural or legal person interested.

In the event of the death of persons with disabilities, these powers may also be exercised, in addition to those indicated in the previous paragraph, by those who have been designated to perform support functions, if such powers are understood to be included in the support measures provided by the designated person.”

During the processing of this procedure, the responding party has stated that they did not respond to the right of access because the exercise was not submitted through the established channels and they were not aware of the request.

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This Spanish Agency for Data Protection has verified that the General Council of Notaries is an entity that depends on the currently named “General Subdirectorate of Notaries and Registries” of the Ministry of the Presidency, Justice, and Relations with the Courts.

Therefore, although it is true that the exercise of the right was not directed directly to the claimed party, it was presented before the Subdirectorate to which it is dependent.

Consequently, it has been established that the claimant exercised the right of access to the personal data of her deceased mother before the claimed party through the Subdirectorate to which it is organically linked, and that her right has not been addressed.

Although it is appropriate for such a request to be directed to the address declared by the responsible party for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 or to the central office, it is considered that the receipt of the request by any department or branch of the responsible party is a valid destination for it, in accordance with Article 12 of LODPGDD, which states: “The data controller shall be obliged to inform the affected party about the means available to exercise the rights that correspond to them. The means must be easily accessible for the affected party. The exercise of the right may not be denied solely on the grounds that the affected party opted for another

means.”

The Guidelines 1/2022, in their version of March 28, 2023, from the European Data Protection Committee, state that

“54. It should be noted that the data controller is not obliged to respond to a request sent to a random or incorrect email address (or postal address) not provided directly by the data controller, nor to any communication channel that is clearly not intended to receive requests related to the rights of the data subject, if the data controller has provided an appropriate communication channel that can be used by the data subject.”

In the case examined, the means used by the claimant and the agency to which she directed her request was the General Subdirectorate to which the claimed party is assigned, which cannot be classified as random or incorrect, nor was it not provided by the data controller, nor is it a channel that is clearly not intended to receive requests related to the rights of the data subjects.

The aforementioned rules do not allow the request to be overlooked as if it had not been made, leaving it without the response that the responsible parties are obliged to issue, even in the event that there are no data of the data subject in the entity's files or even in those cases where the requirements set forth are not met, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, if applicable, deny the request with justification indicating the reasons why the right in question cannot be considered.

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Therefore, the request made obliges the responsible party to provide an express response, in any case, using any means that justifies the receipt of the response.

In this case, however, it is noted among the documentation provided, the response issued by the claimed party dated January 17, 2024, in which “(...) it is communicated that, in accordance with Order JUS/484/2003, of February 19, which regulates the automated files of personal data of the Notary Corps, File 5, letter H, related to the exercise of the rights of access, rectification, cancellation, and opposition, such rights must be exercised, when appropriate, at the Notary where the personal data was provided.

By virtue of this, this Office communicates to you, in the exercise of your right of access, the following data (...)” and provides a list of Notaries to whom you can address, deeds, and dates.

This response, therefore, occurs after the established deadline has been exceeded.

In this regard, it should be specified that the response that corresponds to be made cannot be expressed as a mere administrative procedure. Therefore, considering that this procedure aims to ensure that the guarantees and rights of the affected parties are duly restored, combining the information in the file with the regulations referred to in the preceding sections, it is appropriate to uphold this complaint on formal grounds due to the late issuance of the response, without requiring the responsible party to carry out additional actions in order to issue a new certification regarding the attention to the right.

In view of the cited provisions and other generally applicable ones, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD on formal grounds, the complaint filed by Mr. A.A.A. against the GENERAL COUNCIL OF NOTARIES. However, the issuance of a new certification by the claimed party is not warranted, as the response was issued late, without requiring the responsible party to carry out additional actions.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to the GENERAL COUNCIL OF NOTARIES. In accordance with the provisions of Article 50 of the LOPDGD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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